Number 18 *of* 2001

SEX OFFENDERS ACT 2001

REVISED

Updated to 1 January 2022

This Revised Act is an administrative consolidation of the *Sex Offenders Act 2001*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including the *Maritime Area Planning Act 2021* (50/2021), enacted 23 December 2021, and all statutory instruments up to and including the *Health (Residential Support Services Maintenance and Accommodation Contributions) (Amendment) Regulations 2022* (S.I. No. 1 of 2022), made 2 January 2022, were considered in the preparation of this Revised Act.

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SEX OFFENDERS ACT 2001

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AN ACT TO REQUIRE, IN THE INTERESTS OF THE COMMON GOOD. THE NOTIFICATION OF INFORMATION TO THE GARDA SÍOCHÁNA BY PERSONS WHO HAVE COMMITTED CERTAIN SEXUAL OFFENCES; IN THOSE INTERESTS TO IMPOSE, OR ENABLE THE IMPOSITION OF, CERTAIN OTHER REQUIREMENTS ON SUCH PERSONS (INCLUDING REQUIREMENTS THE PURPOSE OF WHICH IS TO ASSIST IN THEIR REHABILITATION); TO ENABLE CERTAIN COMPLAINANTS TO BE HEARD AND LEGALLY REPRESENTED IN RELATION TO APPLICATIONS UNDER SECTION 3 OR 4 OF THE CRIMINAL LAW (RAPE) ACT, 1981, TO AMEND SECTION 2 OF THE CRIMINAL LAW (RAPE) (AMENDMENT) ACT, 1990, AND TO PROVIDE FOR RELATED MATTERS. [30*th June*, 2001]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:

PART 1

Preliminary and General

Short title and commencement.

1. —(1) This Act may be cited as the Sex Offenders Act, 2001.

(2) This Act shall come into operation on such day or days as the Minister may appoint by order or orders either generally or with reference to any particular purpose or provision and different days may be so appointed for different purposes or different provisions.

Interpretation (general).

2. —(1) In this Act, unless the context otherwise requires—

"Act of 1861" means the Offences against the Person Act, 1861;

"Act of 1908" means the Punishment of Incest Act, 1908;

"Act of 1935" means the Criminal Law Amendment Act, 1935;

"Act of 1990" means the Criminal Law (Rape) (Amendment) Act, 1990;

"Act of 1993" means the Criminal Law (Sexual Offences) Act, 1993;

"conviction" (other than in *sections 12, 22, 26(8)* and *33*) includes a finding of guilty but insane and "convicted" and cognate expressions shall be construed accordingly;

"court" means any court exercising criminal jurisdiction and includes court-martial;

"imprisonment" includes detention in Saint Patrick's Institution or the Central Mental Hospital and "prison" shall be construed accordingly;